

Amendment No. 1 to HB0846

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 1150

House Bill No. 846*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 62, Chapter 76, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(2) "Board" means a board, commission, agency, or other governmental entity created pursuant to this title or title 4 that issues a license, certificate, or registration to engage in a profession or occupation authorized under this title or title 4;

(3) "Contractor" means a contractor of a board that conducts testing for the issuance or renewal of a license, certificate, or registration by the board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration;

(4) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data; and

(5) "Third-party administrator" means a nonprofit or for-profit private entity that is not a contractor of a board, and that conducts an examination or

testing, the result of which is used for the issuance or renewal of a license, certificate, or registration by a board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration.

(b) A board, contractor, or third-party administrator shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a prerequisite to:

(1) Taking an exam or test, the result of which is used for licensure, certification, or registration; or

(2) Completing continuing education requirements, the proof of which is used for the purpose of obtaining, maintaining, or renewing a license, certificate, or registration issued under this title.

(c) This section does not prohibit a board, contractor, or third-party administrator from obtaining:

(1) A physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements; or

(2) A physical or digital copy of an individual's fingerprints or other identifying information as required by another law for the purpose of conducting a criminal background check.

(d) This section does not apply to an audio recording to demonstrate language proficiency during foreign language testing or necessary recordings or monitoring for proctoring a remote test.

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(2) "Board" means the division or a board, commission, agency, or other governmental entity created pursuant to this title or title 4 that issues a license, certificate, or registration to engage in a profession or occupation authorized under this title or title 4;

(3) "Contractor" means a contractor of a board that conducts testing for the issuance or renewal of a license, certificate, or registration by the board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration;

(4) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data; and

(5) "Third-party administrator" means a nonprofit or for-profit private entity that is not a contractor of a board, and that conducts an examination or testing, the result of which is used for the issuance or renewal of a license, certificate, or registration by a board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration.

(b) A board, contractor, or third-party administrator shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a prerequisite to:

(1) Taking an exam or test, the result of which is used for licensure, certification, or registration; or

(2) Completing continuing education requirements, the proof of which is used for the purpose of obtaining, maintaining, or renewing a license, certificate, or registration issued under this title.

(c) This section does not prohibit a board, contractor, or third-party administrator from obtaining a physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements.

(d) This section does not prohibit or limit a board, a third-party administrator, the division, or a contractor acting on behalf of a board from obtaining fingerprints or other identifying information as required by § 63-1-116 or another law for the purpose of conducting a criminal background check.

(e) This section does not apply to an audio recording to demonstrate language proficiency during foreign language testing or necessary recordings or monitoring for proctoring a remote test.

SECTION 3. Tennessee Code Annotated, Title 49, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Agency" means the department of education, state board of education, or other state or local entity that issues a license;

(2) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(3) "Contractor" means a third-party contractor of an agency that conducts testing for the issuance or renewal of a license by the agency, or that

facilitates the completion of continuing education requirements by the holder of such license;

(4) "License" means a Tennessee educator license or other temporary certificate or permit authorizing an individual to teach in grades kindergarten through twelve (K-12) in this state;

(5) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data; and

(6) "Third-party administrator" means a nonprofit or for-profit private entity that is not a contractor of an agency, and that conducts an examination or testing, the result of which is used for the issuance or renewal of a license by an agency, or that facilitates the completion of continuing education requirements by the holder of such license.

(b) An agency, contractor, or third-party administrator shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a prerequisite to:

(1) Taking an exam or test, the result of which is used for licensure; or

(2) Completing continuing education requirements, the proof of which is used for the purpose of obtaining, maintaining, or renewing a license issued under this title.

(c) This section does not prohibit an agency, contractor, or third-party administrator from obtaining:

(1) A physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements; or

(2) A physical or digital copy of an individual's fingerprints or other identifying information as required by another law for the purpose of conducting a criminal background check.

(d) This section does not apply to an audio recording to demonstrate language proficiency during foreign language testing or necessary recordings or monitoring for proctoring a remote test.

SECTION 4. This act takes effect March 1, 2027, the public welfare requiring it, and applies to contracts entered into, renewed, or modified on or after the effective date of this act.